

Court No. - 21

Case :- WRIT - C No. - 26886 of 2020

Petitioner :- Shamshad

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Ajay Kumar

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

The case is passed over on the request of Sri Ajay Kumar, learned counsel for the respondent.

Put up this matter on 20.1.2021 as fresh.

Order Date :- 13.1.2021

A.K.Srivastava

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Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Ajay Kumar

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard learned counsel for the petitioner and Shri Ajay Kumar, learned counsel for sole respondent.

By means of present writ petition, the petitioner is assailing the validity of assessment dated 22.09.2020 issued by respondent whereby, the demand of Rs.1,66,820/- as revenue assessment and Rs.20,000/- as compounding fee has been raised.

At the very outset, Shri Ajay Kumar, learned counsel for the respondent opposed the writ petition and submits that the petitioner is found to be indulged in theft of electricity and thereafter the aforesaid demand has been raised. In case the petitioner is aggrieved against the impugned order, he may file appeal provided under Section 127 of the Electricity Act, 2003 but in any case present writ petition is not maintainable and this Court should not interfere in the matter.

The U.P. Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act and against the impugned orders the remedy of appeal is provided under Section 127 of the Electricity Act, 2003. Whatever the contention as has been raised in the writ petition can be raised in appeal but in any case, as alternative remedy is available, we are not inclined to interfere in the matter. We also make it clear that passing of this order will not at all come in the way of the petitioner to pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

With these observations, the writ petition stands ***disposed of***.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioner alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 20.1.2021

A. Pandey